

Suhel @ Sohil Ansari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 February 2020 · WRIT - C No. 4049 of 2020 · WRIT - C No. 4049 of 2020 · **Writ disposed; EE to decide objection; s.127 if aggrieved**

HEADNOTE

A consumer challenged a recovery citation and notice alleging coercive action without hearing and without following the U.P. Electricity Supply Code, 2005. Without examining those merits, the High Court directed him to appear before the Executive Engineer with his objection and evidence, required a speaking final order within four weeks, stayed coercive action for eight weeks or until disposal of the objection (with automatic vacation and revival on default), and left any grievance against the final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

The petitioner, a consumer, approached the Allahabad High Court seeking certiorari to quash a recovery citation dated 5 November 2019 and a notice dated 7 May 2019 issued by the electricity department, and a mandamus directing the Executive Engineer to decide his pending objection. He alleged that the respondents were taking coercive recovery action without giving him an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after speaking final order

HOLDING

Without examining the validity of the recovery citation or the alleged Supply Code breach, the Court directed the consumer to appear before the Executive Engineer with his objection and evidence; required a speaking and reasoned final order within four weeks of that appearance; stayed coercive action for eight weeks or until disposal of the objection, whichever earlier, with automatic vacation on default and automatic revival of the citation if the consumer failed to appear; and held that if he is aggrieved by the final order it will be open to him to file an appeal under Section 127 of the Electricity Act, 2003 in accordance with law. The writ petition was disposed of on those terms. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to consider the consumer's objection and pass a speaking final order, the Court left any remaining grievance against that order to a Section 127 appeal rather than deciding the citation on merits in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 5.11.2019 AND NOTICE DATED 7.5.2019

Writ disposed without examining the impugned instruments on merits. ¶ 1

NOT DECIDED — WHETHER THE RESPONDENTS FOLLOWED THE U.P. ELECTRICITY SUPPLY CODE, 2005

Allegation of non-compliance was recorded but not adjudicated. ¶ 1